

24TRCV02534 24TRCV02534

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 24TRCV02534 Hearing Date: August 31, 2026 Dept: B

Moving

Parties: Plaintiff KMS Holdings, LLC

Responding

Party: Defendant DbfHermosa, LLC

Motion

to Correct Clerical Mistake in Judgment Nunc Pro Tunc

The Court considered the moving, opposition, and reply papers.

RULING

The motion is DENIED.

BACKGROUND

On

July 31, 2024, plaintiff KMS Holdings, LLC filed a complaint against dbfHermosa, LLC for (1) breach of written contract, (2) specific performance, and (3) breach of the implied covenant of good faith and fair dealing.

On

August 2, 2024, plaintiff filed a FAC.

On

January 17, 2025, the parties stipulated and the Court ordered the case to

arbitration.

On July 16, 2026, the Court granted plaintiff's petition to confirm arbitration.

On July 16, 2026, judgment was entered.

LEGAL AUTHORITY

Under CCP §473(d), "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

"It is well settled that a court has the inherent power to correct [a] clerical error in its judgment so that the judgment will reflect the true facts. The power of a court to correct clerical mistakes in judgments is also a statutory power pursuant to section 473.'" Estate of Douglas (2022) 83 Cal. App. 5th 690, 695 (citation omitted).

"A clerical error in the judgment includes inadvertent errors made by the court which cannot reasonably be attributed to the exercise of judicial consideration or discretion.' 'Clerical error . . . is to be distinguished from judicial error which cannot be corrected by amendment. This distinction between clerical error and judicial error is "whether the error was made in rendering the judgment, or in recording the judgment rendered.'" Id. (citation omitted). "The court does retain power to correct clerical errors in a judgment which has been entered. However, it may not amend such a judgment to substantially modify it or materially alter the rights of the parties under its authority to correct clerical error." Rochin v. Pat Johnson Manufacturing Co. (1998) 67 Cal. App. 4th 1228, 1237.

DISCUSSION

Pursuant to CCP §473(d), plaintiff KMS Holdings, LLC requests an order to correct nunc pro tunc "a clerical and typographical error" in the judgment entered by the Court on July 16, 2026, to reflect the correct name of plaintiff as "KMS Holdings, LLC, a Delaware limited liability company" and not "KMS Holdings, LLC, a California limited liability company."

Plaintiff asserts that in the complaint, plaintiff was erroneously named as a California limited liability company in the caption but that at para. 1, plaintiff alleges that "Plaintiff is and was at all relevant times a limited liability company organized and existing under the laws of the State of Delaware." Plaintiff refers to the arbitration hearing transcripts where plaintiff testified that it is a Delaware limited liability company, and that defendant argued that such entity could not maintain an action in California as it was not qualified to do business in California. Plaintiff notes that the interim award erroneously indicated that plaintiff was a California limited liability company, and that the "Final Award in June 2026 repeated that mistake." Plaintiff contends that the judgment "mistakenly named Plaintiff as a California limited liability company."

In its response, defendant states that it does not oppose the substance of plaintiff's request but that the error is attributable solely to plaintiff and requests that any order granting the motion "make clear" that plaintiff shall not recover attorney's fees and costs incurred in connection with the motion.

In reply, plaintiff contends that any order as to attorney's fees or costs is not properly before the Court.

The Court rules as follows: Plaintiff was consistently identified throughout the entire litigation, including the Final Award and judgment, as a California limited liability company.

The judgment does not reflect a "clerical error" and there was no mistake in rendering the judgment. Amending the judgment to swap plaintiff's state of organization is a substantive alteration of the entity's identity that is more than ministerial. Thus, CCP §473(d) is inapplicable.

The motion is DENIED.

ORDER

The motion is DENIED.

Plaintiff is to give notice of ruling.